

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO**

Civil Action No. 19-cv-01749-RMR-SKC

TITAN MANUFACTURING SOLUTIONS, INC., a Nevada corporation,

Plaintiff,

v.

NATIONAL COST, INC., a Florida corporation doing business as National Tax Group,

Defendant.

FINAL JUDGMENT

This matter was tried on March 14, 2022 through March 18, 2022 and March 21, 2022 through March 22, 2022 before a duly sworn jury of eight, United States District Judge Regina M. Rodriguez presiding. The trial proceeded to conclusion and the jury rendered its Special Verdict Form.

Accordingly, it is ORDERED that, pursuant to Fed. R. Civ. P. 58(a), the Order Adopting in Part the Parties' Proposed Order of Final Judgment [ECF 403] of United States District Judge Regina M. Rodriguez entered on May 5, 2022, and the Order of Final Judgment [ECF 404] of United States District Judge Regina M. Rodriguez entered on May 5, 2022, final judgment is hereby entered in favor of Plaintiff Titan Manufacturing Solutions, Inc. and against Defendant National Cost, Inc. on Plaintiff's claim for breach of contract, and, in accordance with the jury's verdict regarding this claim, Plaintiff Titan Manufacturing Solutions, Inc. is awarded \$1,027,500.00. It is

FURTHER ORDERED that final judgment is hereby entered in favor of Plaintiff Titan Manufacturing Solutions, Inc. and against Defendant National Cost, Inc. on Plaintiff's claim for breach of the implied duty of good faith and fair dealing, and, in accordance with the jury's verdict regarding this claim, Plaintiff Titan Manufacturing Solutions, Inc. is awarded \$10,000.00. It is

FURTHER ORDERED that final judgment is hereby entered in favor of Defendant/Counter Claimant National Cost, Inc. and against Plaintiff/Counter Defendant Titan Manufacturing Solutions, Inc. on Defendant/Counter Claimant's counterclaim for unjust enrichment, and, in accordance with the jury's verdict regarding this counterclaim, Defendant/Counter Claimant National Cost, Inc. is awarded \$1.00. It is

FURTHER ORDERED that post-judgment interest shall accrue at the current rate of 2.03% per annum, as calculated pursuant to 28 U.S.C. § 1961, from the date of entry of judgment. It is

FURTHER ORDERED that costs shall be taxed by the Clerk of Court in the time and manner prescribed by Fed. R. Civ. P. 54(d)(1) and D.C.COLO.LCivR 54.1 against both parties based on their claims and counterclaims. It is

FURTHER ORDERED that by stipulation of the parties, Defendant National Cost, Inc. is hereby permanently enjoined from:

1. Copying, modifying, reproducing, distributing, republishing, displaying, posting, or transmitting, in any form (including via screenshots), any aspect of the Service (which means the online, web-based application and platform provided by Titan via <http://www.titanarmor.com> and/or other associated web pages);

2. Attempting to create a derivative work of, reverse engineering, or decompiling aspects of the Service, including, without limitation, for the purpose of creating a similar or competitive application or platform; and
3. Granting or attempting to create unauthorized access to Titan Armor.

DATED at Denver, Colorado this 5th day of May, 2022.

FOR THE COURT:
JEFFREY P. COLWELL, CLERK

By: s/Emily Buchanan
Emily Buchanan, Deputy Clerk

APPROVED:

A handwritten signature in black ink, appearing to read 'Regina M. Rodriguez', written over a horizontal line.

Regina M. Rodriguez
United States District Judge